

IN THE CIRCUIT COURT OF THE FIRST JUDICIAL CIRCUIT
IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M MOSZKOWSKI,

Petitioner,

V

CASE NO. 2020 CA 001021

RUSTIN R HOWARD, THOMAS J JOHNSON,

Respondent.

_____ /

NOTICE OF LACK OF PROSECUTION:

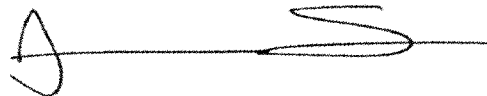
PLEASE TAKE NOTICE that it appears on the face of the record that no activity by filing of pleadings, order of court, or otherwise has occurred for a period of 10 months immediately preceding service of this notice, and no stay has been issued or approved by the Court. Pursuant to Fla.R.Civ.P. 1.420(e), if no such record activity occurs within 60 days following the service of this notice, and if no stay is issued or approved during such 60-day period, this action may be dismissed by the Court on its own motion or on the motion of any interested person, whether a party to the action or not, after reasonable notice to the parties, unless a party shows good cause in writing at least 5 days before the hearing on the motion why the action should remain pending.

MOTION TO DISMISS AND NOTICE OF HEARING

If no record activity occurs within the 60 days immediately following service of this Notice of Lack of Prosecution, and no stay has been issued or approved by the Court; then the Court moves to dismiss this action for lack of prosecution, pursuant to Fla.R.Civ.P. 1.420(e).

A hearing on this Motion to Dismiss is set before the undersigned Judge via Zoom on December 10, 2021 at 3:00 pm (Zoom information on 2nd page). This action shall be dismissed unless a party shows good cause in writing at least 5 days before the hearing why the action should remain pending.

DONE AND ORDERED on September 24, 2021, in Pensacola, Escambia County, Florida.

A handwritten signature in black ink, appearing to be 'J. Shackelford', written over a horizontal line.

Jan Shackelford, Circuit Court Judge

Service List:
BALL, BRADEN Attorney

Per Administrative Directive ESCAD2021-03 “In cases wherein one party is unrepresented (pro se), it is the responsibility of the sole attorney in the case to serve within five business days this [order or judgment] upon any pro se party who does not have access to and is not a registered user of the Florida Courts e-Filing Portal.”

Zoom information:

You may join this meeting from a Computer, Smartphone, or Tablet. You will be prompted upon joining the meeting as to which device you want to use for audio. You may either select “Join with computer audio” to use the built-in microphone and speakers on your device, or you may select “phone call” and dial in on a separate telephone for audio.

If your video does not automatically turn on upon joining the meeting, you may need to click in the bottom left corner to “Start Video.”

Please use the link below to connect to the ZOOM meeting. You may join the meeting 5 minutes beforehand to test your speakers and microphone using the built-in test feature. Please be advised that this is a court event and may be digitally recorded. All participants could be recorded from the time they login until they exit.

Please use a quiet room that is well-lighted for the ZOOM hearing, with no distracting backgrounds.

Please remember to mute your microphone when you are not speaking.

Please connect to the ZOOM meeting 5 minutes before the hearing begins.

ENTER THIS PERSONAL MEETING ID NUMBER: 762-375-3843

Or join the ZOOM meeting with this link: <https://zoom.us/j/7623753843>

Dial in from Telephone: 1-312-626-6799 or 1-929-205-6099

“If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact:

Court Administration, ADA Liaison

Escambia County

190 Governmental Center

Pensacola, Florida 32502

Phone (850) 595-4400 Fax (850) 595-0360

ADA.Escambia@flcourts1.gov

at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.”